Rig Runner Inc.

Alcohol, Drug, and Contraband Policy

Effective Date: 12/29/2021

Approved By: Manuel Ortega

For the purpose of this policy "*Company*" shall refer to: Rig Runner Inc.

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1) PURPOSE

To ensure a safe, healthy, and productive work environment for the employees of the company, customers, and others on company or customer property. To protect company and customer property and assets, ensure efficient operations, and meet any specific requirements of customers. Company shall enforce this drug, alcohol, and contraband policy in a fashion consistent with the laws of the states in which the company employees' are employed.

2) DEFINITIONS

a) **Company Personnel:**

All company employees, agents, subcontractors or subcontractors' employees performing field operations work on company or customer property, or those being considered for employment by the company. This includes temporary and part-time personnel.

b) **Property or Customers Property**:

All real or tangible personal property, including facilities, buildings, vehicles, products and equipment, either owned or controlled by the company or its customers.

c) **Prohibited Substances:**

i) Illicit or un-prescribed drugs, controlled substances and mood or mind-altering substances including all forms of naturally occurring and synthetic drugs (for example: any synthetic derivative/product that produces a marijuana-type high and any herbal products not intended for human consumption);

ii) Potentially impairing medications (e.g. may be prescription drug or over-the-counter medication or herbal medicine):

(1) Used without a prescription, or

(2) Used in a manner inconsistent with the prescription or directions for usage, or

(3) Used without disclosure to company as provided by Section 3(b)(iii) of this Policy

iii) Alcohol;

iv) Medical Marijuana/Recreational Marijuana – The use of marijuana for medical or recreational purposes, even if permitted by state law, regulation or ordinance, will not be considered an acceptable explanation for a confirmed positive laboratory report for marijuana and will be reported by the Medical Review Officer (MRO) as a verified positive drug test for marijuana. The company will treat marijuana like they would alcohol; they are not required to tolerate individuals being under the influence while at work, or on customer property. The company will not permit or accommodate the use, consumption, possession, transfer, display, transportation, sale or growing of marijuana in the workplace.

*** Please note that the use of CBD oil, which is a cannabinoid extract from marijuana or hemp plants, may cause a positive drug test result, depending on the product used. Furthermore, some CBD products may contain compounds deemed illegal under federal law, and therefore the use of such products would violate the company's substance abuse policy. A positive drug test will not be excused based on an employee's claim that he or she used a CBD product, even if it is for a claimed medical purpose, except as otherwise provided under applicable law.

d) **Reasonable Suspicion:**

A belief based on objective and articulable facts sufficient to lead a supervisor to suspect use of prohibited substances.

For the purposes of this section a *supervisor* is a company employee acting in an official supervisory capacity who has successfully completed drug and alcohol supervisor training as outlined in this policy.

e) **Under the Influence:**

i) The presence of a prohibited substance or metabolites of a prohibited substance in body fluids above the cut-off level established by company's policy or other commonly accepted cut-off level;

ii) The presence of a prohibited substance that affects an individual in any detectable manner. The symptoms of influence may be, but are not limited to, slurred speech or difficulty in maintaining balance.

f) **Contraband**:

i) Any drug or alcohol related paraphernalia used or designed for use in testing, packaging, storing, injecting, ingesting, inhaling or otherwise introducing into the human body any Prohibited Substance, or

ii) Any paraphernalia or substance used or designed for use to dilute, substitute, or adulterate any alcohol or drug test specimen, or to otherwise obstruct the alcohol or drug testing process or

iii) Firearms, ammunition, explosives, and weapons.

g) **Designated Employee Representative (DER) also referred to as Designated Contractor Representative (DCR):**

Company personnel with oversight of the company Drug and Alcohol program and authorized by the company to receive test results and make required decisions regarding test results.

h) **Disqualified**:
Company personnel are disqualified from performing work if they fail to meet or comply with, or in any way violate this policy and policy of customers.

i) **Stand Down**:
The immediate removal of company personnel from performing services for company and /or customers.

j) **Medical Review Officer (MRO):**
A licensed or certified physician, designated by the company, responsible for the review and verification of the integrity of drug testing results and for the final interpretation and reporting of drug test results.

k) **Prescription Drug**:
A regulated pharmaceutical medicine that requires physician or other qualified healthcare professional authorization before it can be obtained in the jurisdiction where company personnel are performing services for company or customers. The term is used to distinguish it from over-the-counter drugs, which can be obtained without authorization.

l) **Safety Sensitive Positions:**
Any position with job responsibilities such that a lapse by an individual in that position could increase the probability of serious injury, significant environmental or community impacts or significant damage to company or customer assets.

3) PROHIBITIONS

Unless specifically authorized in writing by the company and its customers, Rig Runner Inc. policy shall prohibit company personnel from the following:

a) Using, possessing, selling, manufacturing, distributing, concealing or transporting on company or customer property (including off-duty time) any of the following items:

i) Any prohibited substance; or

ii) Contraband (except where in violation of state law); or

iii) Being under the influence of any Prohibited Substance.

b) Possessing or using prescription drugs or over-the-counter medication that may cause impairment, except when ***all*** of the following conditions have been met, while on company property (unless otherwise provided for under the American's with Disabilities Act):

i) Prescription drugs have been prescribed by a licensed physician for the person in possession of the drugs, and;

ii) The prescription is not expired and was filled by a licensed pharmacist for the person possessing the drugs, and;

iii) The individual notifies their supervisor that they will be in possession of, or using, impairment-causing prescription drugs or over-the-counter medication and appropriate steps are taken to accommodate the possibility of impairment, including but not limited to, removal from work for the period of possible impairment. Note: Discussions between the individual and their supervisor must be limited to the individual's ability to perform essential job functions.

iv) Company's health professional has assessed the capability or fitness of personnel to perform safety sensitive duties.

c) Being under the influence of prohibited substances while performing any services for the company or their customers.

d) Switching, diluting or adulterating any urine, blood or other sample used for testing.

e) Refusing to submit to a test for alcohol or drugs.

f) Refusing to submit to an inspection as provided for in Section 5 of this Policy.

g) Being the subject of a confirmed positive alcohol or drug test.

4) ROLES AND RESPONSIBILITIES

a) **Designated Employee Representative (DER) also referred to as Designated Contractor Representative (DCR):**

Designated Employee Representative (DER) should be an employee within the Health, Safety, Security and Environment (HSSE) department who is authorized to receive test results and other communications, take immediate action to remove workers from a company or customer's jobsite and make required decisions in the testing and evaluation process. Specific roles and responsibilities assigned to a DER should include, at a minimum, the following:

i) Select and contract with a laboratory or service provider, based on pre-determined criteria, to help implement all or part of the Drug, Alcohol and Contraband Program.

ii) Receive general correspondence, newsletter, and announcements from laboratories and service providers.

iii) Coordinate reasonable suspicion training for all supervisors and ensure they have signed a document acknowledging completion of the training.

iv) Schedule and coordinate drug and alcohol testing activities.

v) Maintain confidential files for the Drug, Alcohol and Contraband Program.

vi) Monitor non-negative, positive, or invalid test results and results supporting that the specimens have been adulterated or substituted to determine appropriate actions.

b) **Medical Review Officer (MRO):**

An MRO is responsible for receiving and reviewing laboratory test results and evaluating medical explanations for certain drug test results. Roles and responsibilities assigned to an MRO typically include the following:

i) Serve as an independent party to oversee the accuracy and integrity of the company Drug and Alcohol Testing process (DOT and NON-DOT).

ii) Review appropriate copies of chain-of-custody forms to determine if problems exist.

iii) Conduct verification interviews with workers for non-negative drug test results or results indicating that the specimen has been adulterated or substituted.

iv) Interpret drug test results to determine if a legitimate medical explanation exists for a laboratory's confirmed positive, an invalid test result or adulterated or substituted specimen.

v) Immediately report verified positive or invalid results, results requiring immediate collection under direct observation, adulterated or substituted specimens, and other refusals to test to appropriate personnel.

vi) Report written drug test results in a confidential manner to appropriate personnel authorized to receive such information.

5) SEARCHES AND INSPECTIONS

Searches and inspections may be:

a) Conducted on company or customer property, at any time, by company or customer supervisors or authorized search and inspection specialists including scent trained animals.

b) Unannounced searches or inspections of company or customer personnel and their property, which may include, but is not limited to: wallets, purses, lockers, baggage, offices, desks, toolboxes, clothing and vehicles.

c) Employees have the right to refuse being searched or having their personal effects searched or to cooperate in the requested tests; however, refusal to allow such searches or to cooperate in such lawfully permitted searches by any employee will be cause for disciplinary action, up to and including immediate termination.

d) If discovery of Prohibited Substances or Contraband cannot be directly associated with individual company personnel, but can be reasonably associated with a defined group of company personnel (e.g. people who use one change room):

   a. Customers may conduct or require company to conduct an inspection of company personnel group's clothing, wallets, purses, baggage, lockers, work areas, desks, tool boxes, vehicles and any other designations by customers, and/or

   b. Customers may require company to conduct Group suspicion-based testing of company personnel within this group.

6) TESTING REQUIREMENTS

Drug and alcohol testing must meet the requirements of customers:

a) **Pre-Access Testing**

i) All company personnel are subject to customer pre-access testing which may mandate that the employee(s) receive a negative result on a drug and/or alcohol test within a customer's specific required amount of time preceding the employee's first access to customer property. Note: Some customers may waive this requirement if employee(s) are currently active in a random testing pool. Annual drug and alcohol testing is also required by specific customers. Upon customer's request, company shall so certify in writing.

ii) Company will provide no information to customers identifying individuals who have positive pre-access tests.

b) **Post-Incident Testing**

Retaliation against employees who report accidents is strictly forbidden. Any drug and alcohol testing under this section will be applied in a neutral fashion, to foster a safe work environment, and only to identify drug/alcohol use in the recent past. Testing under this section will not be undertaken to retaliate against employees for reporting workplace injuries.

Immediately following an incident or as soon as possible; company should communicate with the customer and receive confirmation that post-incident drug and/or alcohol testing will be required.

i) Company shall remove individuals from customer property and surrender their site credentials to the customers IF; it is determined by the company or customers, from the best information available immediately following a work-related incident, that the performance of one or more company personnel contributed to the incident or cannot be completely discounted as a contributing factor to the incident.

ii) Alcohol and drug testing must be completed as soon as possible after the decision to test. If specimen collection is not completed within 2 hours, the reason for delay must be documented. Customers may request to review reasons for the delay and decide if they are acceptable. An individual so removed will be allowed to return to work on customer property *only after*:

   (1) company conducts alcohol and drug testing on the individual as soon as possible following the individual's removal from the site, and

   (2) the company certifies all of the following in writing:

      (a) the test identification number

      (b) the individual's 4 digit identifying number

      (c) the test date and time, and

      (d) a negative test result

   (3) On the written certification the company will include a consent signed by the individual permitting disclosure to customers of the test result.

iii) If an employee who is subject to post-incident testing is conscious, able to urinate normally (in the opinion of a medical professional) and refuses to be tested, that employee shall be removed from their position and shall be subject to discipline.

   For the purpose of this part "incident" means:

   (1) An actual event that caused:

      (a) Injury requiring medical treatment beyond first aid

      (b) Environmental impact beyond a small immediate area to:

         (i) soil/ground-water

         (ii) marine life, or

         (iii) impact to nearby habitat, wildlife, livestock, crops or fisheries

      (c) Process Safety events as determined by the responsible company or customer Supervisor

      (d) Property damage as determined by the responsible company or customer Supervisor

      (e) Motor vehicle accident (the operator of the vehicle or other individuals where there is evidence to support that they may have contributed to the incident)

         ****NOTE**:** Customers may define more stringent criteria

         Or

      (f) An event that had potential for

         (i) Serious injury/fatality

         (ii) Environmental impact beyond Company or Customer Premises

         (iii) Property damage as determined by the responsible Company or Customer Supervisor

(2) The Company may decide not to conduct a post-incident drug and/or alcohol test if:

(a) The best information immediately available after the incident indicates that the employee's performance could not have contributed to the incident, or

(b) Because of the time between the performance and the incident, it is not likely that a drug and/or alcohol test would reveal whether performance was affected by drug and/or alcohol use.

c) **Reasonable Suspicion Testing**

i) Upon reasonable suspicion of company or customers that company personnel is under the influence of a prohibited substance while on company or customer property (refer to Attachment 3 as a guide to assess whether there is reasonable suspicion for requesting a test), company shall remove the individual(s) from customer property and surrender their site credentials to the customers. Company should conduct alcohol and drug testing on the individual as soon as possible following the individual's removal from the site. If specimen collection is not completed within 2 hours, the reason for delay must be documented. Customers may request to review reasons for delay and decide if they are acceptable.

ii) An individual removed from company or customer property for Reasonable Suspicion will be allowed to return to work on customer property only after:

(1) Company certifies all of the following in writing:

(a) the test identification number

(b) the individual's 4 digit identifying number

(c) the test date and time, and

(d) a negative test result

(2) On that written certification the company will include a consent signed by the individual permitting disclosure to customers of the test result.

d) **Group Suspicion-based Testing**

i. Group Suspicion-based testing of company personnel may be required without notice on customer premises, based on evidence of Prohibited Substances or Contraband on customer premises that cannot be identified to a specific individual. Group Suspicion-based testing will be limited to the likely affected work group or work area.

ii. Company will immediately Stand Down the company personnel.

iii. Alcohol and drug testing specimen collection must be completed as soon as possible after the decision to test. If specimen collection is not completed within 2 hours, the reason for delay must be documented. Customers may request to review reasons for delay and decide if they are acceptable.

e) **Random Testing**

If specific customers require random drug and/or alcohol testing then the following guidelines will be followed:

i) Unless otherwise specified by a specific customer, company personnel shall be subject to:

(1) Un-announced random testing.

(2) Performed on a quarterly basis (at a minimum). Random tests must not be predictable.

(3) That yields a compliance of an annualized rate as determined by the customer operator.

ii) If required by the specific customer, a breath alcohol test will be given at the same time as the drug test.

iii) Upon notification of being selected for a drug and/or alcohol test, company personnel must report to the collection site within 30 minutes, plus travel time. The reason for delay must be documented if unable to arrive within this time frame.

iv) Failure to report to the collection site, refusal to test, or adulterating a specimen is considered the same as a positive test and the individual could be denied access to company or customer premises.

v) If company personnel are not in the random pool when a random selection is made, they must complete another pre-enrollment test before being re-admitted to the random pool.

f) **Wall-to-Wall Testing/Group Random Testing**

Company personnel may be subject to:

i. Un-announced en masse drug and alcohol testing.

ii. Such tests are scheduled at the sole discretion of the customers. This includes the determination of the scope and the timing of such testing.

iii. Such a group may include all members of the named group on site at the determined time or time period and ***shall not*** be determined in terms of named individuals.

iv. Such groups may include, but are not limited to, all company personnel on site, or by shift, by crew, by location, by craft, by company or by another similar category, including a random selection based on site access records.

g) **Fitness for Work**

After a fitness for work concern is identified, and before the company can return the individual back to perform Safety Sensitive services for customers, the company's health professional must evaluate the individual, clear them to return to work, define restrictions if applicable, and document the conclusion. A fitness for concern may be identified from such events as:

I. MRO review of a laboratory positive test result may lead to a MRO negative determination, but the MRO may identify a fitness for work concern.

II. A required medication disclosure by those in Safety Sensitive positions.

7) TESTING PROTOCOL:

Drug and alcohol collections, chain of custody and other related procedures shall be consistent with US DOT or industry practice. For testing purposes, substances and threshold levels will comply, at a minimum, with customer requirements.

a) **Custody and Control Form (CCF)**

A CCF is required for every drug test. Alcohol screening test results must be documented on either a CCF or an alcohol testing form. A CCF is required for every blood alcohol confirmation test. For confirmation alcohol tests using a breath alcohol device, result and zero blank printouts must be attached to the CCF or attached to the alcohol testing form.

b) **Laboratory:**

Laboratories selected for employee drug testing must be evaluated against the following criteria to help ensure that results obtained from these laboratories will be reliable.

i) Laboratories must be certified according to local laws and regulations or industry practices for providing accurate and reliable services.

(1) Urine samples: A laboratory must be accredited/certified by either:

(a) Department of Health and Human Services under the National Laboratory Certification Program or Substance Abuse and Mental Health Services Administration (SAMHSA), or

(b) College of American Pathologists Forensic Drug Testing (CAP-FDT), or

(c) National Laboratory Certification Program (NLCP).

(2) Hair specimens must be analyzed by a Clinical Laboratory Improvement Program (CLIP) accredited laboratory.
Note: some customers will not allow hair testing as a means to meet their requirements.

ii) Special handling and chain-of-custody procedures must:

(1) be written and available, and

(2) discuss inspecting, documenting, storing, and transporting specimens.

iii) Laboratory management and staff must have appropriate education, experience, and qualifications.

iv) Quality-Control procedures must be:

(1) written and available, and

(2) include testing blank and spiked samples for verification.

v) Laboratories must be able to provide technical assistance and advice concerning drug and alcohol testing.

vi) Sample supplies appropriate to the type of specimen being collected or the test run must be readily available from the laboratory.

vii) Laboratories must be able to generate confidential and accurate reports.

c) **Collection Personnel:**

i) Urine specimens must be collected by personnel who have been trained and certified according to the SAMHSA/DHHS guidelines which includes:

(1) basic information,

(2) qualification training,

(3) initial proficiency demonstration,

(4) refresher training, and

(5) Error correction training.

ii) Hair specimens must be collected by personnel that have documentation supporting that they have been trained in:

(1) Equipment and procedures used in gathering and collecting hair specimens.

(2) Preparing chain-of-custody forms.

(3) Preparing the specimen for shipment, and

(4) Shipping the sample to an approved laboratory.
Note: Hair testing will only be utilized for customer compliance when the customer has authorized this testing method.

iii) Breath/Saliva testing shall be conducted utilizing devices approved by the National Highway Traffic Safety Administration or equivalent. All collection and testing procedures shall mirror as closely as possible to US DOT (Department of Transportation) protocols.

d) **Alcohol:**

Personnel that have a blood alcohol concentration (BAC) level:

i) Personnel that have a blood alcohol concentration (BAC) level equal to or greater than 0.02 during pre-employment confirmation testing are considered to be under the influence of alcohol and will not be eligible to perform services for certain customers.

ii) Personnel that have a blood alcohol concentration (BAC) level equal to 0.02 and less than 0.04 must be removed from performing safety or security-sensitive activities until the BAC level is below 0.02 (unless customer specifies a more stringent level) and until 8 hours have elapsed.

iii) Personnel that have a blood alcohol concentration (BAC) level equal to or greater than 0.04 have violated the Drug, Alcohol and Contraband Program and are subject to disciplinary action up to and including termination (unless customer specifies a more stringent level).

8) NON-COMPLIANCE

Company personnel will be found to be in non-compliance if they:

- Violate any portion of this policy or the customer's policy, or
- Refuse to cooperate with the searches and tests included in this policy or the customer's policy.

9) COMPANY PERSONNEL DISQUALIFIED FROM PERFORMING SERVICES FOR CUSTOMERS

With respect to company personnel that are disqualified from performing services for customers:

- Company shall immediately remove the individual from customer property.
- Company shall immediately notify the customer that the individual is disqualified from performing services.
- Company will not assign or reassign the disqualified individual to perform services for the customer or in any other facility of the customer in the future.
- Company will immediately review with customer the nature of the work previously performed by the individual.
- At customer's request, company shall, at its sole cost and risk, inspect all work in which the individual may have participated and submit a written report to the customer that documents the inspection and any findings and the actions taken to assure all deficiencies have been corrected.

**note (Company shall comply with all applicable state and local related laws. If restrictions are placed on employers, who have individuals that violate this policy, company shall contact their customer representative for instructions pertaining to the specific individual.)

10) SUBSTANCE ABUSE AWARENESS

Company warrants that company personnel performing work have each been fully informed of the requirements of this policy and customer's policy. Before beginning work on company or customer property, all company personnel must sign a written certification that they have been so informed and agree to be bound by the requirements. See Attachment 1-3.

11) APPLICABLE LAWS

Company shall comply with all applicable Federal, State, and local drug and alcohol related laws and regulations applicable to company personnel (e.g., DOT regulations, Department of Defense (DOD) Drug-Free Workplace Policy, Drug-Free Workplace Act of 1988, etc.).

12) SUPERVISOR TRAINING

Company shall provide training/education to company supervisors. The list, at a minimum, should consist of:

- Recognition of performance indicators of probable drug and/or alcohol use.
- Effects and consequences of drug and/or alcohol use to personal health, safety and the workplace.
- 60-minute training session on the specific, contemporaneous, physical, behavioral, and performance indicators of probable **drug** use.
- 60-minute training session on the specific, contemporaneous, physical, behavioral, and performance indicators of probable **alcohol** use.
- Random testing notification process.
- Post-incident testing process.
- Stand-down process.
- Disqualified individual processes, which includes flagging those individuals to ensure they won't be sent back to work for a customer.

** Records of trained individuals (including name and date) must be maintained by the company and available to customers upon request.

13) AUDIT

a) Company shall keep records required by this policy available for inspection by customers during the period that the company is performing work for customers and for a period of (3) years after company ceases to perform work for that customer.

i) Such records include but are not limited to:

(1) Laboratory copies of test results.

(2) Chain of custody forms.

(3) Copies of signed acknowledge/consent forms from this policy.

(4) Random testing notification.

(5) Post incident testing.

(6) Reasonable suspicion testing.

(7) Stand down procedures.

(8) TPA contact information (if used).

(9) MRO(s) name and contact information.

(10) List of collection sites.

(11) Records of personnel training and demonstrated competency in drug specimen collection and evidential breathalyzer tester.

(12) Laboratory contact information.

(13) Written procedure for ensure company personnel, who are disqualified from providing services to customers, continue to be excluded from customers locations.

ii) Records can be stored electronically as long as they are accessible upon request.

b) At their discretion, customers may perform unannounced audits of the company's alcohol and drug program to verify that the company's policy and its enforcement comply with these guidelines.

c) At customer's request the company shall:

i) Provide separate lists of company personnel (including name and 4 digit identifying number) who were eligible for customers work on a date specified by customers.

ii) Provide customers with the following information on each alcohol and drug test conducted for each company personnel identified by customers from those lists:

(1) Date of and type of test (e.g. random, pre-access) and;

(2) Laboratory chain-of-custody identification number and/or test number.

d) Upon submission by customers of a list, or lists, of 4 digit identifying numbers, chain-of-custody ID numbers and test dates, the company shall obtain an agreement with any consortium, laboratory, or Medical Review Officer (MRO) providing drug and/or alcohol testing services for the company to ensure:

i) The consortium/laboratory will verify that the tests were conducted as represented, and

ii) The consortium/laboratory or company MRO will provide a sworn statement attesting whether or not each of the tests identified by the customer can be confirmed as negative.

ATTACHMENT 1

Acknowledgement of drug and alcohol contraband policy receipt

I hereby acknowledge that I have been provided a copy of the Rig Runner Inc. drug/alcohol policy requirements. I understand that disciplinary action up to and including termination, will result if I violate this policy.

I also hereby authorize and consent to disclosure by Rig Runner Inc. and its agents, including, but not limited to, any collecting and testing agencies, of the drug and alcohol test results and any related information to customers of Rig Runner Inc. and its authorized agents, assigns, or representatives.

_____ _____

Employee Signature Date

_____

Employee Printed Name

*** This consent form is for release of NON-DOT tests. Please follow DOT regulations if you choose to submit DOT test results in place of non-dot in order to meet the requirements of a specific client***

ATTACHMENT 2

1. SUPERVISOR TRAINING

Managers and supervisors must be adequately trained in the topics listed below to ensure they effectively communicate and implement the Drug, Alcohol and Contraband Program.

- Rationale for having the Drug, Alcohol and Contraband Program.
- Requirements contained in the Program.
- Procedures for implementing the Program.
- Drug and alcohol abuse terms and symptoms.
- Reasonable suspicion that an employee is under the influence of drugs or alcohol.
- Documentation of potential drug or alcohol abuse problems.
- Protecting employee confidentiality.

Training on the recognition of performance indicators of probable drug and/or alcohol use and on its effects and consequences to personal health, safety and the workplace shall be included. It is required that each supervisor who will determine whether an employee must be tested based on reasonable suspicion, receive at least one 60-minute training session on the specific, contemporaneous, physical, behavioral and performance indicators of probable drug and alcohol use. Records of individuals trained (including name and date) must be maintained by the company and available to customers upon request.

(See Attachment 3: Supervisor Drug and/or Alcohol Checklist)

2. EMPLOYEE EDUCATION

Employee education opportunities must be developed to communicate the Drug and Alcohol Testing Program. Education and communication must include, but are not limited to the following topics:

- Requirements contained the Drug, Alcohol and Contraband Program.
- Types and effects of drugs, including prescription and over-the-counter medication, and alcohol on employees and the ability to perform their work safely.
- Ways to assess whether employees may have drug and alcohol dependency problems or may be under the influence of drugs or alcohol.
- Requirement to inform supervisors of reasonable suspicion of an employee being under the influence of drugs or alcohol.
- Disciplinary actions for employees failing to comply with the Drug, Alcohol and Contraband Program.

ATTACHMENT 3
SUPERVISOR DRUG AND/OR ALCOHOL CHECKLIST

Supervisor Drug and/or Alcohol Checklist		
Question	**Yes**	**No**
1. Smell of alcohol on breath of person?	☐	☐
2. Speech:		
• Slurred?	☐	☐
• Confused?	☐	☐
• Fragmented?	☐	☐
• Slow?	☐	☐
• Unusually soft?	☐	☐
• Unusually loud?	☐	☐
3. Disorientation – Is the contractor confused about:		
• Where he or she is?	☐	☐
• What day it is?	☐	☐
• What time it is?	☐	☐
4. Apparent inability to focus on work?	☐	☐
5. Unusual or unexplained resistance to authority or refusal to follow reasonable directions?	☐	☐
6. Lack of motor coordination?	☐	☐
7. Mood:		
• Belligerent?	☐	☐
• Moody?	☐	☐
• Ecstatic?	☐	☐
• More nervous than usual?	☐	☐
• Giddy?	☐	☐
• Talkative?	☐	☐
• Drowsy?	☐	☐
8. Skin color:		
• Pale?	☐	☐
• Flushed?	☐	☐
9. Excessive perspiration?	☐	☐
10. Excessive trips to the restroom?	☐	☐
11. Bloodshot eyes?	☐	☐
12. Dilated pupils?	☐	☐
13. Pinpoint pupils?	☐	☐
14. Traces of alcohol in containers?	☐	☐
15. Confession by contractor that he/she was drinking alcohol or ingesting drugs?	☐	☐
16. Confirmation by other contractors or employees?	☐	☐
17. Presence of substances with the appearance of drugs?	☐	☐
18. Presence of drug paraphernalia?	☐	☐
19. Smell of marijuana?	☐	☐
20. Congregation of contractors in remote areas of the companies, facilities, or in areas not usually frequented by contractors?	☐	☐
21. Weariness, fatigue, or exhaustion?	☐	☐
22. Deteriorating physical appearance?	☐	☐
23. Yawning excessively?	☐	☐

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Supervisor Drug and/or Alcohol Checklist		
Question	**Yes**	**No**
24. Blank stare or expression?	☐	☐
25. Sudden and/or unpredictable change in energy level?	☐	☐
26. Unusually energetic?	☐	☐
27. Shaking or trembling of hands?	☐	☐
28. Sunglasses worn at inappropriate times?	☐	☐
29. Changes in appearance after lunch break?	☐	☐
30. Withdrawal and avoidance of peers?	☐	☐
31. Complaints from co-workers?	☐	☐
32. Excessive absenteeism, especially Mondays, Fridays and days before or after holidays or paydays?	☐	☐
33. Unusually high incidence of colds, flu, upset stomach, and/or headaches?	☐	☐
34. Unauthorized or unscheduled absences?	☐	☐
35. Breathing or swallowing difficulties?	☐	☐
36. Unusual sneezing / nasal congestion?	☐	☐
37. Needle marks on arms?	☐	☐
38. Prolonged lunch hours?	☐	☐
39. Tardiness?	☐	☐
40. Unexplained departures from work or disappearances from the job area?	☐	☐
41. More than average number of job-related mistakes injuries or accidents?	☐	☐
42. Decrease in efficiency or productivity?	☐	☐
43. Careless operation of equipment?	☐	☐
44. Careless performance of job?	☐	☐

ADDENDUM

(This addendum addresses additional requirements established by ExxonMobil. Company must, at a minimum, develop Alcohol and Drug testing procedures that are defined within this addendum.)

1. **Definitions used in this Addendum**

   b. ***Alcohol Test Results*** - Alcohol test results shall be reported as Blood-Alcohol Content (BAC) or its equivalent. All references in this addendum to blood Alcohol test results are expressed on this basis.

   c. ***Alcohol Testing Technician*** **- An Alcohol Testing Technician** is a person who is responsible for performing an Alcohol screening and/or confirmation test using the approved alcohol test methods.

   d. ***Direct Observation*** - a urine collection during which the monitor directly observes the donor urinate into the collection container.

   e. ***First Aid*** -. Link to the full list of First Aid treatments as defined by U.S. OSHA - https://www.osha.gov/recordkeeping/firstaid_list.pdf.

   f. ***Limit of Detection*** **(LOD)** - The lowest concentration at which an analyte (*e.g.,* a drug/metabolite or adulterant) can be definitively identified, but the concentration cannot be accurately calculated (for quantitative assays).

   g. ***Monitored Collection*** - a urine collection during which monitor must be in visual contact with donor as permitted by local culture and regulations but does not watch urine go from donor body into the collection container. Monitor must:

      i. Be the same gender (unless monitor is medical professional).

      ii. Remains just outside the toilet enclosure, but the toilet enclosure must remain ajar for the monitor to maintain visual contact with donor.

      iii. Listens for sounds indicating the specimen is directly from donor.

      iv. Listens for any sounds indicating an attempt to tamper with the specimen.

2) Position Categories and Testing Requirements

a. Testing Guidance on Safety Sensitive Categorization

Individuals falling under this classification that have not tested to the required drug test panel for any test reason in a two calendar year period, must be selected for an unannounced test before the end of the second calendar year.

Safety Sensitive positions include as a minimum:

- Positions that require the exercise of independent action and can result in direct and immediate irreversible effects. That is:

  a. An individual's action is taken independently and not subject to review, modification, or control by another person, a supervisor, or a system, and/or

  b. An individual's action is not subjected to checks and balances which could or would override or change the individual's action, and/or

  c. There is little, if any, time delay between an individual's action and the resulting effect such that others cannot reasonably intervene to override or change the action.

  Or

  An activity recognized in the industry for incidents and near misses with potential for fatality or serious injury, or event that could substantially and adversely affects the environment, Company assets, or the community.

3) Testing of Government Regulated Positions

Some countries may require government regulatory testing:

United States

In addition to government required testing (DOT), Company Personnel working U.S. government regulated positions and also classified as Safety Sensitive, as defined by ExxonMobil will be Alcohol and Drug tested for all test types and to the test panel as defined in this Addendum.

Other Countries

Company Personnel in government regulated positions, as required by local laws, and also in Safety Sensitive positions only have to comply with the random testing program defined by the regulations and are not required to comply with the EM random testing program. However, if the regulatory testing program does not include a random testing component, the company must comply with the EM random testing program for their company personnel also in SS positions, as allowed by local laws.

4) Alcohol Testing and Specimen Security

a) ***Approved Alcohol Test Methods***

Alcohol Screening Test shall be performed by either breath or oral fluid.

Alcohol Screening Cut-off Level: 0.02 (blood alcohol content BAC or its equivalent)

Alcohol Confirmation Test shall be performed by either breath (EBT) or blood.

b) *Specifications for Alcohol Testing Devices*

i) Alcohol Screening Test Devices must be:

1. Listed on the U.S. National Highway Traffic Safety Administration Conforming Products List of Alcohol screening devices (ASD), or
2. Certified by the U.S. Food and Drug Administration with a minimum Cutoff of 0.020 g/dL or
3. European CE marked, with a minimum Cutoff of 0.020 g/dL or
4. Any device that is approved for confirmation breath testing can be used for screening breath testing.

c) ***Alcohol Confirmation Breath Testing Device****:*

Must be approved by:

i. Listed on U.S. National Highway Traffic Safety Administration Conforming Products List for Evidential Breath Testing Devices; or

ii. European Norm EN 15964; or

iii. UK Home Office for Breath Alcohol Screening Devices; or

iv. Canadian Alcohol Test Committee Approved Screening Devices.

a. Must provide a printed test result.
b. Must assign a unique number to each test.
c. Must print the instrument name, the serial number, and time of the test on the printout.
d. Must perform and pass a blank test prior to all subject tests.

Alcohol Confirmation Cut-off Level: 0.04 (blood alcohol content BAC or its equivalent)

d) ***Alcohol Testing Technicians***

Only an Alcohol Testing Technician or Collector that meets the requirements of this section can perform Alcohol testing.

An Alcohol Testing Technician or Collector is not required to be a medical professional unless required by local law. An Alcohol Testing Technician or Collector must be trained according to manufacturer's instruction on any devices used.

An Alcohol Testing Technician or Collector must maintain documentation of training and demonstrated competency.

For confirmation Alcohol blood collections, a Collector must be a trained phlebotomist or healthcare professional and trained in the completion of a CCF.

e) ***Alcohol Procedures***

An Alcohol Testing Technician or Collector must:

i. If saliva testing is used, allow the company personnel to select one (1) of three (3) saliva test screening devices.

ii. If breath disposable screening device is used, allow the company personnel to select one (1) of three (3) breath test screening devices.

iii. If breath testing instrument (EBT) is used, allow company personnel to select one (1) of three (3) mouth pieces.
iv. Document all tests on CCF or Alcohol testing form.
v. Sign the test result.
vi. Have the company personnel sign the test result.
vii. Provide a copy to the company personnel.
viii. Provide a copy to the company.
ix. For breath alcohol testing devices, conduct and document accuracy check at least once per calendar month.
x. Visually examine the device before conducting the test.
xi. Perform the Screening Test according to manufacturer instructions.
xii. If the Screening Test result is negative < 0.02 g/dL (0.02%) by breath or oral fluid, document the result on either an Alcohol testing form or a CCF and conclude testing.
xiii. If the Screening Test is ≥0.02 g/dL (0.02%) by breath or oral fluid, a Confirmation Test is required.
xiv. Wait 15 minutes but no longer than 30 minutes before conducting the Confirmation Test, not allowing the company personnel to eat, drink, smoke, chew, or put anything in his/her mouth. If the time between the Screening and Confirmation Test is greater than 30 minutes, document the reason for the delay.
xv. If the Alcohol Confirmation Test is by breath, perform the Confirmation Test according to manufacturer instructions.
    1. If the Confirmation Test result is Negative (*i.e.,* < 0.02 g/dL (0.02%) in breath (or equivalent)), attach the printed results to either the Alcohol testing form or a drug test CCF and conclude testing.
    2. If the Confirmation Test result is ≥0.02 g/dL (0.02%) in breath (or equivalent)), attach the printed results to either the Alcohol testing form or a drug test CCF and immediately inform the company site supervisor.
xvi. If the Confirmation Test is conducted using a blood specimen:
    a. Use a Blood Collection Tube for a specimen container.
    b. Clean skin with non-Alcohol disinfectant.
    c. Draw blood with a clean (Alcohol-free) needle or syringe.
    d. Add sample to blood tube via needle. Do not remove stoppers.
    e. Slowly invert the tubes completely at least five times to insure proper mixing of the anticoagulants. Do not shake vigorously.
    f. Complete a CCF for the blood specimen. Prepare the specimen for shipment to the laboratory, noting site where blood was drawn and time and date of collection.
    g. Prepare the specimen for shipment to the laboratory, and distribute the documentation.
    h. Vials must be sealed with tamper evident labels. If the CCF does not have an integrated specimen seal (*i.e.,* tamper-evident tape) printed with the same unique specimen identifier on the form and seal, a separate secure seal for each specimen container that is capable of uniquely identifying and linking the specimen with the form.
    i. Packaging materials that satisfy current applicable courier and customs regulations.

f) **Company *Notification***

The Alcohol Testing Technician or Collector must notify the DER or company site supervisor when there is:

i. Positive Alcohol screen and/or Confirmation Test result.
ii. Refusal to test.
iii. Uncooperative or belligerent behavior by company personnel.
iv. Failure to complete the collection process.
v. Company personnel who admits to Alcohol abuse.
vi. Unusual circumstance.

5) Approved Alcohol and Drug Test Matrices *(not applicable for government regulated testing)*

Test Matrix	Screening Test	Confirmation Test
Alcohol		
Blood	Not Approved	Approved
Breath	Approved	Approved (EBT)
Oral Fluid	Approved	Not approved
Urine	Not approved	Not approved
Drug		
Blood	Not Approved	Not Approved
Hair	Not Approved	Not Approved
Oral Fluid	Not Approved	Not Approved
Urine	Approved	Approved

6) Drug Specimen Collection / Security

a. ***Collectors***

Collectors must meet the requirements of this section.

A Collector is not required to be a medical professional unless required by local law.

A Collector must be trained in all steps necessary to complete a collection correctly and the proper completion and transmission of the CCF, including:

i. The steps to complete the CCF.
ii. Collection procedure and urine collection kit.
iii. Instructions for unusual collections (*e.g.,* shy bladder).
iv. Collection site preparation.
v. Company personnel Identification.
vi. Fatal Flaw.
vii. Company personnel Privacy.
viii. Reading of FSD test results.
ix. Color blindness test (for colorimetric field testing).
x. Specimen handling and storage.
xi. Packaging of specimens to be shipped to the laboratory.
xii. Manufacturer instructions for FSD

A Collector must maintain documentation of training and demonstrated competency.

b. ***Collection Site***

For urine collections, the collection site should be a private area with toilet facilities. In the event a private facility is not available, the Collector should perform the urine collection in the area that will provide the company personnel as much privacy as practicable. The toilet facilities shall be free of all possible additives and adulterants (*e.g.,* running water, soap, and cleaning agents).

c. ***Collection Kits for Laboratory Testing***

i. Blood Alcohol collection kit.
    1) A gray top blood collection tube containing Sodium Fluoride preservative and anticoagulant (*e.g.,*10ml tube containing 25mg sodium fluoride and 20mg potassium oxalate).
    2) Single-use needle or butterfly.
ii. Urine drug collection kit.

i. Collection cup for laboratory based testing with integral temperature measurement or POCT device with integral temperature and validity measurements (pH, oxidants, and creatinine).

ii. Specimen container (if collection cup is not designed to be used for specimen transport).

d. ***Collection Procedure***

A Collector must:

1. Conduct only one company personnel collection at one time and complete the collection before beginning another collection. For FSD testing, complete the entire collection process from test collection through interpreting and recording the results before beginning a collection of other personnel.
2. Conduct the Alcohol testing before collecting the specimen for drug testing.
3. Verify the company personnel's identity by viewing original photo identification (*i.e.,* government or company-issued photo identification). If photo identification is not available, the company's policy pertaining to additional methods of verifying company personnel identity applies. If the company personnel cannot be positively identified, stop the collection process and notify the DER.
4. Briefly explain the collection process to the company personnel, including the collection steps, the tamper-evident seal application, the certification procedure, and, for FSD testing, the requirement for laboratory confirmation for non-Negative specimens.
5. Allow the company personnel to select one from at least three collection kits.
6. Follow the specific device, laboratory or company instructions for the collection, including completion of the CCF.
7. Ensure that sufficient quantity of specimen has been collected to allow re-analysis. Mitigate any opportunity to substitute, dilute or adulterate the specimen.
8. For FSD testing, record the result on the CCF, and in event of a non-Negative result, immediately notify the site supervisor.
9. For Direct Observation Urine Collections, if allowed by local law and custom, collect a second specimen (using a new CCF), and send both specimens to the laboratory, when:
    i. The urine specimen temperature is out of range.
    ii. The urine specimen validity measures are outside the normal range (e.g., oxidants, creatinine, pH).
    iii. The physical appearance of the specimen indicates possible tampering (*e.g.,* unusual color or odor.
    iv. The Collector observes suspicious behavior by company personnel.
    v. Direct Observation Urine Collections will be conducted when directed by the DER or the MRO.
    vi. If Direct Observation Urine Collections are not allowed by local law or custom, conduct a Monitored collection. The monitor does not watch the company personnel urinate into the collection container. If the monitor hears sounds or makes other observations indicating an attempt to tamper with a specimen, this should be considered a refusal to test and observations and collection complete notes should be included in the remarks section of the CCF.
10. If the CCF does not have an integrated specimen seal (*i.e.,* tamper-evident tape) printed with the same unique specimen identifier on both the form and seal, a separate secure seal for each specimen container that is capable of uniquely identifying and linking the specimen with the form. (*See* CCF Elements).
11. After collection, prepare the specimen for shipment to the laboratory using packaging materials that satisfy current applicable courier and customs regulations, except for FSD specimens that are Negative, and distribute the documentation.

7) ***Company Notification***

The Collector must notify the DER or company site supervisor when there is:

a. Non-Negative FSD result.

b. Refusal to test.
c. Uncooperative or belligerent behavior by company personnel.
d. Failure to complete the collection process.
e. Company personnel who admits to drug use.
f. Unusual circumstance.

8) Custody and Control Form (CCF)

a. Required Elements for CCF

Secure seal for each specimen container, with the same specimen identifier as the CCF. The unique identification number should preferably be in both human readable and barcode format on both the CCF and seal.

1. Identification of the company personnel (by name or code).
2. Confirm identity of company personnel.
3. Confirmation of specimen integrity (will vary according to the type of specimen being collected).
4. Medication will be listed on the CCF in the remarks section only if required by local law.
5. Date and time of specimen collection.
6. Signature of specimen Collector.
7. Name of testing laboratory.
8. Names and signatures of all company personnel who had custody of the specimen during the collection process.
9. Name and contact information of the MRO.
10. If an Alcohol screening or Confirmation Test is performed with a drug test, the Alcohol result may be documented on the CCF. One option is to record the Alcohol results on the drug CCF with an indication of device manufacturer / model type and lot number used.
11. FSD results, if applicable, must be recorded on the CCF as either Negative or non-Negative with identification of the device and lot number used.
12. CCF should be labeled “Private” if required by local law.
13. Paper CCF must be at least 4-part carbonless form, with one copy for each of:
    a. Collector
    b. Donor
    c. Lab
    d. MRO

9) Laboratory Certification / Accreditation

Regional Laboratory Requirements

a. *North America:* A laboratory must be accredited to either: College of American Pathologists Forensic Drug Testing (CAP-FDT) (all specimen types) or National Laboratory Certification Program (NLCP) (for urine testing laboratories).
b. *Australia / New Zealand:* A laboratory must be accredited to AS/NZS 4308.

10) Drug Testing Requirements

Screening Test must be performed using an appropriate and validated technique. Positive Screening Test must be confirmed using a laboratory chromatographic technique in combination with mass spectrometry.

1. Regional Drug Testing Requirements
   United States: FDA 510(k) clearance of device required for the testing of specimens.
2. *European Union:* CE-marked assays and/or devices are required for the testing of specimens.
3. Drug testing must be done at a laboratory that is certified and/or accredited by a recognized international, national or regional organization that addresses workplace drug testing to a forensic standard. Recognized standards include current versions of:

i. AS/NZS 4308 (Urine).
ii. U.S. SAMHSA current Guidelines for federal workplace testing (Urine and oral fluid).
iii. College of American Pathologists, Forensic Drug Testing Accreditation (CAP-FDT).
iv. Accredited to the ISO/IEC 17025 standard by a forensic organization such as FQS Forensic Quality Services - International (FQS-I), or UKAS (*United Kingdom Accreditation Service).*
v. Accredited to the ISO/IEC 17025 or ISO 15189 standard and maintains in possession a certified letter from the laboratory director stating that it meets and will maintain compliance with the following criteria:
    1. Two independent analytic methods are used for determining a Positive result:
        - A screening process, usually an Immunoassay screen, on one portion of the original specimen; and
        - A confirmatory test, usually Gas or Liquid Chromatography in combination with Mass Spectrometry on a different portion of the original specimen.
    2. Specimen validity testing is performed that is appropriate to the specific specimen tested, including reliably identifying specimens that are adulterated or substituted.
    3. Chain of custody procedures (including both specimens and aliquots) are utilized throughout laboratory.
    4. The testing methodology reliably discriminates between specimens that contain drug(s) at or above the specified Cutoff levels of the required drug test panel and those that do not.
    5. Quality control procedures, include:
        i. Internal open/blind controls.
        ii. External open proficiency testing (PT) program.
        iii. External blind proficiency testing program.
    6. Personnel qualifications are documented and competency assessment is performed annually.
    7. Laboratory safety procedures are implemented to protect the health and safety of laboratory personnel and visitors.
    8. Quality improvement and quality management are an integral part of laboratory operations.
    9. Document control procedures are implemented.
    10. Records and specimen management procedures are implemented.
    11. Method validation and verification is performed and records maintained.
    12. Internal and external facility and on-site inspections/audit occur every two years and records are available for review.
    13. Security of specimen, records, and testing area/facility is maintained.

11) Specimen Validity Testing (SVT)

i. Urine - The following validity tests must be performed and reported on every urine specimen:
    a. pH.
    b. Oxidizing Adulterants (*e.g.,* nitrites, chromium VI).
    c. Creatinine.
    d. Specific gravity when the creatinine is <20 mg/dL or 2.0 mmol/L (depending on the standard the chosen laboratory uses).

    In order to report a urine specimen as dilute, invalid, adulterated, substituted or as having failed specimen integrity, confirmatory testing on a second aliquot must be performed utilizing a well-recognized technology as indicated below:

    1. pH – pH meter.
    2. Oxidizing Adulterant – ion-chromatography or ICP-MS (as applicable).
    3. Creatinine – colorimetric/spectrophotometry

4. Specific gravity:
    - Dilute – 3-place (preferably, 4-place, with printout) digital refractometer.
    - Substituted – 4-place digital refractometer with printout.
    - Invalid – spectrophotometry.

ii. Blood Testing (for Alcohol confirmation) - Laboratories will test blood specimens for ethanol (Alcohol) using a validated gas chromatographic confirmation method with a Cutoff of 0.020 g/dL or lower.

12) Drug Testing using Field Screening Device (FSD)

FSD is also referred to as Point of Collection Testing device or POCT.

Where allowed to be used by local law, company may choose to use an ExxonMobil approved Quest Diagnostics' Drug "Express Results Integrated Multi-Drug Screen Cup" for all test types (i.e., pre-enrolment, random, Reasonable Suspicion, Post Incident, Group Suspicion-based test.).

Non-Negative results must be forwarded immediately to a laboratory meeting the qualifications stated in this exhibit for confirmation of the FSD result.

company must send 10% of FSD specimen, whether Negative or non-Negative, to the laboratory to confirm FSD accuracy and Collector visual reading of results.

The approved FSD may be purchased from Quest Diagnostics at ExxonMobil contracted rates. company may contact the ExxonMobil Account Representative at Quest to order FSD at:
Phone number: +1-610-454-4750
U.S. Toll free phone number: 855-470-4677
E-mail address: ExxonMobilSetUp@questdiagnostics.com
Website: www.employer-solutions-resources.com/exxon

13) Drug Test Review Process by MRO

a. Review Process

For Non-Negative results, the process must include:

1) Authenticating the identity of company personnel.
2) Reviewing the external chain of custody for Fatal Flaw.
3) Reviewing the confirmed laboratory test result.
4) The opportunity for company personnel to speak to the MRO.
5) The opportunity when deemed appropriate by the MRO for the company personnel to request re-analysis of the original specimen.

If, after five calendar days after receipt of the laboratory report, no contact with the company personnel has been made, the MRO will report the result to the DER.

MRO staff members or assistants who are not physicians may assist the MRO in the Review process.

b) **MRO Review**

MRO actions based on review of Non-Negative confirmed laboratory results are as follows:

i. For a Fatal Flaw, cancel the test and inform the DER to order a new collection.

ii. For a confirmed laboratory Positive result, for an over the counter medication, verify the result as Positive unless the company personnel presents a legitimate medical explanation for the presence of the drug/metabolite in his/her specimen.

iii. For a confirmed laboratory Positive result for a Prescription Drug, verify the result as MRO Positive unless company personnel presents a legitimate prescription for the presence of the drug/metabolite in the specimen.

iv. If during the MRO Review process, concerns about fitness for duty are found, from either medical condition or use of potentially impairing medications, inform the DER to order a medical examination and a have fitness for duty assessment performed. Company personnel must Stand Down from Covered Services pending resolution of MRO Fitness for Duty concern.

v. For a confirmed laboratory Positive result of marijuana, for an alleged medical marijuana use or exposure (e.g., second-hand / passive inhalation), but not due to a legitimate prescription (e.g., Marinol, Dronabinbol, Sativex), verify the result as Positive but offer to report the alleged legitimate use of marijuana to the DCR.

vi. For a confirmed laboratory adulterated or substituted result, verify the result as a refusal to test because of adulteration or substitution unless company personnel present a legitimate explanation for the presence of the adulterant or substitution in his/her specimen.

vii. For a confirmed laboratory adulterated or substituted result, cancel the test if the company personnel presents a legitimate explanation for the presence of the adulterant in his/her specimen. If allowed under local law and custom, inform the DER to order a new collection under Direct Observation or Closely Monitored.

viii. For a laboratory invalid result, cancel the test. If allowed under local law and custom, inform the DER to order a new collection under Direct Observation or Closely Monitored.

ix. If a valid urine specimen cannot be produced due to legitimate medical reasons determined by a specialist (see 1. below), inform the DER to order a new drug test using an alternative specimen type, if allowed by ExxonMobil's approved alcohol and drug test matrices in section above. In the absence of a legitimate medical reason, record the result as Refusal to Test.

x. If company personnel request re-analysis of the specimen, the MRO will arrange for re-analysis at Limit of Detection (LOD) at a laboratory in compliance with this Guideline. If there is insufficient specimen for re-analysis, contact the DER for instruction.

MRO actions for an alleged inability to provide a specimen:

A. Confidentially inform the DER of the alleged inability of company personnel to provide a specimen, and direct the DER to order a specialist medical examination of the company personnel.

B. All communications with the DER must be kept confidential.

c) ***Review Process for Drug Tests not requiring MRO Review***

The Review process for laboratory drug test results not requiring MRO review are:

A. Review the external chain of custody for completeness.

B. Review laboratory result.

- For a laboratory Negative result, report as Negative, and no further action is required.
- For all laboratory Negative-dilute results, report as Negative and no further action is required.
- For specimens Rejected for Testing or Fatal Flaw, order a new collection.

The following is ExxonMobil's minimum Drug testing panel for all test reasons. All individuals who would be required to test, should be tested using a drug test panel that meets or exceeds the following.

EXXONMOBIL'S MINIMUM DRUG TEST PANEL AND CUTOFFS

SUBSTANCE	SCREENING CUT-OFF LEVEL (ng/ml)	CONFIRMATION CUT-OFF LEVEL (ng/ml)
AMPHETAMINES	500	
AMPHETAMINE		250
METHAMPHETAMINE		250
MDMA		250
MDA		250
MDEA		250
BARBITURATES	300	
AMOBARBITAL		200
BUTALBITAL		200
PENTOBARBITAL		200
PHENOBARBITAL		200
SECOBARBITAL		200
BENZODIAZEPINES	300	
ALPRAZOLAM METAOLITES		100
NORDIAZEPAM		100
OXAZEPAM		100
TEMAZEPAM		100
FLURAZEPAM METABOLITES		100
LORAZEPAM		100
TRIAZOLAM METABOLITES		100
COCAINE METABOLITES	150	
BENZOYLECGONINE		100
MARIJUANA METABOLITES	20	
THCA (11-nor delta-9THCA)		10
METHADONE	300	200
OPIATES	300	
MORPHINE		100

SUBSTANCE	SCREENING CUT-OFF LEVEL (ng/ml)	CONFIRMATION CUT-OFF LEVEL (ng/ml)
CODEINE		100
HYDROMORPHONE		100
HYDROCODONE		100
6-ACETYLMORPHINE (6-AM)	10	10
OXYCODONES	100	
OXYMORPHONE		100
OXYCODONE		100

SYNTHETIC CANNABINOIDS – U.S. ONLY

PARENT COMPOUND	REQUIRED URINE TESTING METABOLITE	MAX SCREENING and CONFIRMATION CUT-OFF LEVELS (ng/ml)	
JWH-018/AM-2201	JWH-018 N-pentanoic acid	**2.0** to 5/31/2016	**0.2** screen and confirmation 6/1/2016 and beyond
JWH-073	JWH-073 N-butanoic acid	**2.0** to 5/31/2016	**0.2** screen and confirmation 6/1/2016 and beyond
UR-144/XLR-11	UR-144 N- pentanoic acid	**4.0** to 5/31/2016	**0.5**screen and confirmation 6/1/2016 and beyond
AKB-48-(APINACA)	AKB48 N-pentanoic acid	**2.5**	
BB-22	BB-22-3-carboxyindole	**5**	
PB-22-(CUPIC)	PB-22-3-carboxyindole	**5**	
5-FLUORO-PB-22- (5F-PB-22)	5-FLURO PB-22-3-carboxyindole	**5**	
AB-FUBINACA	AB-FUBINACA oxobutanoic acid	**2.5**	
ADB-PINACA	ADB-PINACA N-pentanoic acid	**5**	
AB CHMINACA	AB CHIMINACA 3- methyl-butanoic acid (“M2”)	**2.5**	
AB PINACA/5-F-AB-PINACA	AB PINACA N-pentanoic acid	**5**	
ADBICA	ADBICA N-pentanoic acid	**5**	

Changes/Updates to the Model Policy – Revision Dates: 6/28/2021

Section	Title	Change	Reason
Section 2	Definitions – (g)	Added DCR	To clarify DER is also known as DCR (Designated Contractor Representative)
Section 4	Roles and Responsibilities – (a)	Added DCR	To clarify DER is also known as DCR (Designated Contractor Representative)